

STATE OF NEW YORK

6578--A

2025-2026 Regular Sessions

IN SENATE

March 17, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to the release of identifying information of consenting registrants from the adoption registry

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 4138-c of the public health law,
2 as amended by chapter 181 of the laws of 2010, is amended to read as
3 follows:
4 6. Upon receipt of a final consent or pre-authorization consent form
5 by the adoptee, by either of the birth parents, and/or by a biological
6 sibling of the adoptee, the department shall, unless the adoptee or
7 biological sibling registrant shall elect otherwise, if an authorized
8 agency was involved in such adoption, release identifying information to
9 such agency; such agency shall thereafter promptly release identifying
10 information about the consenting registrants to the consenting regis-
11 trants. If no authorized agency was involved, or if any registrant shall
12 have elected not to have release of the information by the authorized
13 agency involved in such adoption the department shall release identify-
14 ing information to the consenting registrants. Such identifying informa-
15 tion shall be limited to the names and addresses of the consenting
16 registrants and shall not include any other information contained in the
17 adoption or birth records. However, nothing in this section shall be
18 construed to prevent the release of adoption records as otherwise
19 permitted by law.
20 § 2. Section 4138-c of the public health law is amended by adding a
21 new subdivision 6-b to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 6-b. The commissioner shall promulgate rules and regulations for the
2 creation of a pre-authorization consent form to be used by an adoptee,
3 either of the birth parents, and/or a biological sibling to consent to
4 the release of the consenting registrants' identifying information to
5 the consenting registrants.

6 § 3. This act shall take effect on the thirtieth day after it shall
7 have become a law. Effective immediately, the addition, amendment and/or
8 repeal of any rule or regulation necessary for the implementation of
9 this act on its effective date are authorized to be made and completed
10 on or before such effective date.